

TOWN OF LUNENBURG
P. O. BOX 135
LUNENBURG, MA 01462-0135

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RESIDENTIAL CUSTOMER

LUNENBURG, MA 01462

TOWN OF LUNENBURG SPECIAL TOWN MEETING WARRANT
Monday, November 28, 2017; 7:00 P.M.
LUNENBURG MIDDLE/HIGH SCHOOL AUDITORIUM
1079 Massachusetts Avenue

PLEASE BRING THIS WARRANT WITH YOU TO TOWN MEETING.

INDEX OF NOVEMBER 28, 2017 SPECIAL TOWN MEETING ARTICLES

ARTICLE	DESCRIPTION	COST	SOURCE
1	FY 2018 Budget Adjustment Article	TBD	Raise & Appropriate
2	FY 2018 Lunenburg Professional Firefighters PFFM, Local 4358A Collective Bargaining Agreement	TBD	Raise & Appropriate or Transfer from Available Funds
3	FY 2018 AFSCME, Council 93, Municipal Employees Union Collective Bargaining Agreement	TBD	Raise & Appropriate or Transfer from Available Funds
4	Architectural & Engineering Services for Conceptual Design and Construction Cost Estimates of Municipal Offices at T.C. Passios	TBD	Raise & Appropriate
5	Supplement May 6, 2017 ATM Article 7 for Wallis Park Playground Project	\$25,000	To Be Determined
6	Establish Revolving Fund for Technology Fees	\$30,000	Revenue collected from E-Permitting Technology Fees
7	Accept Provisions of M.G.L. c. 40, §3		
8	Establish Revolving Fund for Artificial Turf Field		Revenue collected from rental and lease
9	Establish Revolving Fund for T.C. Passios and Brooks House		Revenue collected from rental and lease
10	Accept Deed in Lieu of Foreclosure for property located at 842 Chase Road		
11	Moratorium on Sale of Municipal Land & Buildings located at 960 Mass. Ave., 30 School St., 17 Main St., 1033 Mass. Ave. & 1025 Mass. Ave.		
12	Lease Agreement with Telecommunications Co. for Space at Town Hall		
13	Amend Article XV of Town Bylaw to Add Positions to Salary Administration Plan		
14	Accept M.G.L. c. 90, § 17C		
15	Accept M.G.L. c. 90, § 18B		
16	Accept M.G.L. c. 90, § 20A 1/2		
17	Lease Agreement for Early Learning Mobile Technology Platform		
18	PILOT Agreement for 265 Pleasant Street		
19	Amend Zoning Bylaw by Deleting Chapter 250, § 6.7		
20	Amend General Bylaws by Adding Chapter 204, §1, §2		



**TOWN OF LUNENBURG
SPECIAL TOWN MEETING WARRANT
NOVEMBER 28, 2017**

Worcester, ss:

To: John E. Baker, Constable of the Town of Lunenburg, in the County of Worcester, Greetings:

In the name of the Commonwealth of Massachusetts, you are hereby directed to notify and warn the inhabitants of the Town of Lunenburg, qualified to vote in elections and town affairs, to meet in the Lunenburg Middle/High School Auditorium in said Lunenburg on Tuesday, the 28th day of November next, at 7:00 o'clock in the evening (7:00 P.M.), for the purpose of taking action on the Special Town Meeting Warrant, and then and there to act on the following articles, viz:

SPECIAL TOWN MEETING ARTICLES

ARTICLE 1. To see if the Town will vote to raise and appropriate or transfer from available funds, all sums of money necessary to amend the amounts voted for the Town's FY 2018 Budget, under Article 8 of the May 6, 2017 Town Meeting; or take any other action relative thereto. (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

2/3 Vote Required

ARTICLE 2. To see if the Town will vote to raise and appropriate or transfer from available funds, a sum of money to fund the first year of the FY 18, FY 19 and FY 20 Lunenburg Professional Firefighters PFFM, Local 4358A Collective Bargaining Agreement dated July 1, 2017 – June 30, 2020; or take any action relative thereto. (Submitted By Town Manager) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

2/3 Vote Required

ARTICLE 3. To see if the Town will vote to raise and appropriate or transfer from available funds, a sum of money to fund the first year of the FY18, FY19 & FY20 Collective Bargaining Agreement dated July 1, 2017 – June 30, 2020 with AFSCME, Council 93, Municipal Employees Union; or take any other action relative thereto (Submitted By Town Manager) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

2/3 Vote Required

ARTICLE 4. To see if the Town will vote to raise and appropriate or transfer from available funds, the sum of money to fund architectural and engineering services for the conceptual design and construction cost estimates for the construction of municipal offices at the T.C. Passios Building; or take any other action relative thereto. (Submitted by Board of Selectmen) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

2/3 Vote Required

ARTICLE 5. To see if the Town will vote to raise and appropriate or transfer from available funds, a sum of money in the amount of \$25,000 to supplement the amount voted under Article 7 of the 2017 Annual Town Meeting on May 6, 2017 under the Capital Planning Report which provided \$12,000 to be used for the Playground Project at Wallis Park; or take any other action relative thereto. (Citizens Petition) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

2/3 Vote Required

ARTICLE 6. To see if the Town will vote to authorize in accordance with M.G.L. Chapter 44, §53E½, a revolving fund for the deposit of proceeds from a technology fee for the purpose of payment of software fees, software upgrades, and equipment related to electronic permitting. Charges and money received in connection with this program are to be deposited in said revolving fund and expended by the Town Manager, IT Director, and Land Use Director without further

appropriation. Said revolving account expenditures shall not exceed \$30,000 per year without the approval of the Board of Selectmen and Finance Committee; or take any other action relative thereto. (Submitted by Town Manager)
(Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

ARTICLE 7. To see if the Town will vote to accept the provisions of M.G.L. Chapter 40, § 3, which leaves any balance remaining in a revolving fund established for the rental or lease of a municipal building or property in the revolving fund and allows the expenditures of the fund for the upkeep and maintenance of said facility; or take any other action relative thereto. (Submitted by Town Accountant) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

ARTICLE 8. To see if the Town will vote to establish a revolving fund for the deposit of proceeds from the rental and lease of the artificial turf field located at 1079 Massachusetts Avenue starting in fiscal year 2018, which began on July 1, 2017; or take any other action relative thereto. (Submitted by the Town Accountant) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

ARTICLE 9. To see if the Town will vote to establish a revolving fund for the deposit of proceeds from the rental and lease of the T.C. Passios Building located at 1025 Massachusetts Avenue and the Brooks House located at 1033 Massachusetts Avenue starting in fiscal year 2018, which began on July 1, 2017; or take any other action relative thereto. (Submitted by Town Accountant) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

ARTICLE 10. To see if the Town will vote to accept a deed in lieu of foreclosure to property known as and numbered 842 Chase Road, more specifically identified in the Assessor's records at Map 13, Parcel 013-0001, such property to be held in the care, custody and control of the Conservation Commission for conservation purposes, and to thereby treat as having been paid real estate taxes and other municipal charges and liens on said property, all in accordance with M.G.L. Chapter 60, § 77C; or take any action relative thereto. (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

ARTICLE 11. To see if the Town will vote to place a moratorium of no less than ten years on the sale of the land and/or buildings situated thereon known as the Ritter Memorial Building located at 960 Massachusetts Avenue, shown on Assessor's Map 071, Lot 074; the land and/or buildings situated thereon known as the old Primary School Building located at 30 School Street, shown on Assessor's Map 071, Lot 076; the land and/or buildings situated thereon known as Town Hall located at 17 Main Street, shown on Assessor's Map 060, Lot 005; the land and/or buildings situated thereon known as the Brooks House located at 1033 Massachusetts Avenue, shown on Assessor's Map 060, Lot 055; and the land and/or buildings situated thereon known as T.C. Passios School located at 1025 Massachusetts Avenue, Assessor's Map 060, Lot 055; or take any other action relative thereto. (Citizens Petition) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

ARTICLE 12. To see if the Town will vote to authorize the Board of Selectmen to enter into a lease agreement with a telecommunications company for the lease of space at the Town Hall, for a term of ten (10) years, with three (3), five (5) year extensions on such terms and conditions as the Board of Selectmen deem in the best interest of the Town; and to authorize the Board of Selectmen to take all actions necessary to administer and implement such agreement; or take any action relative thereto. (Submitted By Town Manager) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

ARTICLE 13. To see if the Town will vote to amend Article XV of the Town's Bylaw entitled "Salary Administration Plan" of the Town of Lunenburg as follows: the position of Beach Director be added and assigned to Grade 7; the position of Lifeguard be added and assigned to Grade 1; the position of Local Inspector be added and assigned to Grade 10; or take any other action relative thereto. (Submitted by Personnel Committee) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

ARTICLE 14. To see if the Town will vote to accept M.G.L. c. 90, §17C, authorizing the establishment of a speed limit of 25 miles per hour on any roadway inside a thickly settled or business district that is not a state highway; or take any

other action relative thereto. (Submitted by Police Chief) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

ARTICLE 15. To see if the Town will vote to accept M.G.L. c. 90, §18B, authorizing the establishment of designated safety zones with a speed limit of 20 miles per hour on, at, or near any way which is not a state highway and/or, with the approval of the Division of Highways, a state highway; or take any other action relative thereto. (Submitted by Police Chief) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

ARTICLE 16. To see if the Town will vote to accept M.G.L., c. 90 §20A½, authorizing designation of a parking clerk to perform the duties specified in said statute; or take any other action relative thereto. (Submitted by Police Chief) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

ARTICLE 17. To see if the Town will vote to authorize the Lunenburg Public Schools to enter into a lease agreement for up to five years for the purchase of a perpetual license agreement with “Footsteps 2 Brilliance” for an early learning mobile technology platform; or take any other action relative thereto (Submitted by the School Committee) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

ARTICLE 18. To see if the Town will vote to authorize the Board of Selectmen to negotiate, approve, and enter into a tax agreement pursuant to the provisions of M.G.L. Chapter 59, Section 38H (b), and Chapter 164, Section 1, or any other enabling authority, between the Town and Nugen, LLC, or its successors or assigns, for personal property attributable to solar photovoltaic facilities to be installed and operated in the Town of Lunenburg on land located at 265 Pleasant Street and as shown on Assessor’s Map 97, Parcel 90 for a term of up to 25 years and on such terms and conditions and for such consideration as the Board of Selectmen deems appropriate, and further to authorize the Board of Selectmen to take such action as may be necessary to carry out the vote taken hereunder; or take any other action relative thereto. (Submitted by Board of Selectmen) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

ARTICLE 19. To see if the Town will vote to amend the Zoning Bylaw, by deleting Chapter 250 Section 6.7, Stormwater Management – NPDES Phase II Permits and Section 6.8 Discharges to the Municipal Storm Sewer System and Waters of the Commonwealth NPDES Phase II Permits; or take any action relative thereto. (Submitted by the Planning Board) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

ARTICLE 20. To see if the Town will vote to amend the General Bylaws, by adding the following text as Chapter 204 Sections 1 and 2; or take any action relative thereto. (Submitted by the Planning Board) (Board of Selectmen and Finance Committee will make a recommendation at Town Meeting)

204-1. STORMWATER MANAGEMENT – NPDES PHASE II PERMITS

A. Purpose and intent.

- (1) Regulation of discharges to the municipal separate storm sewer system (MS4) is necessary for the protection of the Town of Lunenburg's water bodies and groundwater, and to safeguard the public health, safety, welfare and the environment. Increased and contaminated stormwater runoff associated with developed land uses and the accompanying increase in impervious surface are major causes of impairment of water quality and flow in lakes, ponds, streams, rivers, wetlands, and groundwater which result in the contamination of drinking water supplies; erosion of stream channels; alteration or destruction of aquatic and wildlife habitat; and flooding. This bylaw establishes minimum stormwater management standards for the final conditions that result from development and redevelopment projects to minimize adverse impacts off-site and downstream which would be borne by abutters, townspeople and the general public.
- (2) This regulation requires local review and approval of a stormwater management plan for all development and redevelopment projects that disturb one acre or more. In addition to these regulations, the owner and/or developer is also obligated to meet the requirements of the Federal Environmental Protection Agency's (EPA) regulations for stormwater management.

B. The objectives of this bylaw are:

- (1) To require practices to control the flow of stormwater from new and redeveloped sites to the Town's storm drainage system in order to prevent flooding and erosion;
- (2) To protect groundwater and surface water from degradation;
- (3) To promote groundwater recharge;
- (4) To prevent pollutants from entering the Town's municipal separate storm sewer system (MS4) and to minimize discharge of pollutants from the MS4;
- (5) To ensure adequate long-term operation and maintenance of structural stormwater best management practices so that they work as designed;
- (6) To comply with state and federal statutes and regulations relating to stormwater discharges; and
- (7) To establish Lunenburg's legal authority to ensure compliance with the provisions of this bylaw through inspection, monitoring, and enforcement.

C. Applicability. No person may undertake a construction activity following the effective date of this Bylaw, including clearing, grading and excavation that results in a land disturbance that will disturb equal to or greater than one acre of land or will disturb less than one acre of land but part of a larger common plan of development or sale that will ultimately disturb equal to or greater than one acre of land draining to the Town of Lunenburg's municipal separate storm sewer system, without a permit from the special permit granting authority. Construction activity does not include routine maintenance that is performed to maintain the original line and grade, hydraulic capacity or the original purpose of the site. Construction activities that are exempt are:

- (1) Normal maintenance and improvement of land in agricultural use as defined by the Wetlands Protection Act regulation, 310 CMR 10.04;
- (2) Maintenance of existing landscaping, gardens or lawn areas associated with a single-family dwelling;
- (3) The construction of fencing that will not substantially alter existing terrain or drainage patterns;
- (4) Construction of utilities other than drainage (gas, water, electric, telephone, etc.) which will not alter terrain or drainage patterns;
- (5) Work activities of municipal, state or federal agencies or their agents outside of the Phase II boundaries as shown on the latest U.S. Environmental Protection Agency's National Pollutant Discharge Elimination System (NPDES) Phase II maps.
- (6) As authorized in the Phase II Small MS4 General Permit for Massachusetts, stormwater discharges resulting from the activities identified in Subsection C(1) that are wholly subject to jurisdiction under the Wetlands Protection Act and demonstrate compliance with the Massachusetts Stormwater Management Policy as reflected in an order of conditions issued by the Conservation Commission are exempt from compliance with this bylaw.

D. Permits and procedures.

- (1) The special permit granting authority (SPGA) under this bylaw shall be the Lunenburg Planning Board. Such special permit shall be granted if the SPGA determines, in conjunction with the Conservation Commission, Department of Public Works, Board of Health and Building Commissioner, that the intent of this bylaw, as well as specific criteria, are met. The SPGA shall not grant a special permit under this section unless the petitioner's application materials include, in the SPGA's opinion, sufficiently detailed, definite, and credible information to support positive findings in relation to the standards given in this section. The SPGA shall document the basis for any departures from the recommendations of the other Town boards or departments in its decision.

- (2) The site owner or his agent shall file with the SPGA 10 copies of a completed application package for a stormwater management permit (SMP). Permit issuance is required prior to any site-altering activity. While the applicant can be a representative, the permittee must be the owner of the site. The SMP application package shall include:
 - (a) A completed application form with original signatures of all owners;
 - (b) Ten copies of the stormwater management plan and project description as specified in Subsection **E(1)**;
 - (c) Ten copies of the operation and maintenance plan as required by Subsection **F** of this bylaw;
 - (d) Payment of the application and review fees.
- (3) Entry. Filing and application for a permit grants the SPGA, or its agent, permission to enter the site to verify the information in the application and to inspect for compliance with the resulting permit.
- (4) Other boards. The SPGA shall give one copy of the application package to the designated technical reviewers, which include the Conservation Commission, Department of Public Works, and Building Commissioner, for the purpose of reviewing the permit application. The SPGA may also engage the services of a peer review engineer at its discretion.
- (5) Fee structure. The SPGA shall obtain with each submission an application fee established by the SPGA. The SPGA is authorized to retain a registered professional engineer or other professional consultant to advise the SPGA on any or all aspects of these plans. Applicants must pay review fees before the review process may begin.
- (6) Actions. The SPGA's action, rendered in writing, shall consist of either:
 - (a) Approval of the stormwater management permit application based upon determination that the proposed plan meets the standards in Subsection **E(2)** and will adequately protect the water resources of the community and is in compliance with the requirements set forth in this bylaw;
 - (b) Approval of the stormwater management permit application subject to any conditions, modifications or restrictions required by the SPGA which will ensure that the project meets the standards in Subsection **E(2)** and adequately protects water resources, as set forth in this bylaw;
 - (c) Disapproval of the stormwater management permit application based upon a determination that the proposed plan, as submitted, does not meet the standards in Subsection **E(2)** or adequately protect water resources, as set forth in this bylaw.
- (7) Project completion. At completion of the project, the permittee shall submit as-built record drawings of all structural stormwater controls and treatment best management practices required for the site. The as-built drawing shall show deviations from the approved plans, if any, and be certified by a registered professional engineer.

E. Contents of stormwater management plan.

- (1) Application. The stormwater management plan shall contain sufficient information for the SPGA to evaluate the environmental impact, effectiveness, and acceptability of the measures proposed by the applicant for reducing adverse impacts from stormwater. The plan shall be designed to meet the Massachusetts stormwater management standards as set forth in Subsection **E(2)** below and the current edition of the Department of Environmental Protection guidelines and policies. The plan shall be designed to also meet the policy standards of the SPGA. The stormwater management plan shall fully describe the project in drawings, and narrative. It shall include:
 - (a) Locus map;
 - (b) The existing zoning, and land use at the site;
 - (c) The proposed land use;

- (d) The location(s) of existing and proposed easements;
- (e) The location of existing and proposed utilities;
- (f) The site's existing and proposed topography, with contours at two-foot intervals;
- (g) The existing site hydrology;
- (h) A description and delineation of existing stormwater conveyances, impoundments, and wetlands on or adjacent to the site or into which stormwater flows;
- (i) A delineation of one-hundred-year floodplains, if applicable;
- (j) Estimated high groundwater elevation in areas to be used for stormwater retention, detention, or infiltration;
- (k) The existing and proposed vegetation and ground surfaces, with runoff coefficient for each;
- (l) A drainage area map showing pre- and post-construction watershed boundaries, drainage area and stormwater flow paths;
- (m) A description and drawings of all components of the proposed drainage system, including:
 - [1] Locations, cross sections, and profiles of all brooks, streams, drainage swales and their method of stabilization,;
 - [2] All measures for the detention, retention, or infiltration of water;
 - [3] All measures for the protection of water quality;
 - [4] The structural details for all components of the proposed drainage systems and stormwater management facilities;
 - [5] Notes on drawings specifying materials to be used, construction specifications, and typicals; and
 - [6] Expected hydrology, with supporting calculations;
- (n) Proposed improvements, including location of buildings or other structures, impervious surfaces, and drainage facilities, if applicable;
- (o) Timing, schedules, and sequence of development, including clearing, stripping, rough grading, construction, final grading, and vegetative stabilization;
- (p) A maintenance schedule for the period of construction; and
- (q) Any other information requested by the SPGA.
- (2) Standards. Projects shall meet the standards of the Massachusetts Stormwater Management Policy, which are as follows:
 - (a) No new stormwater conveyances (e.g., outfalls) may discharge untreated stormwater directly to or cause erosion in wetlands or water of the commonwealth.
 - (b) Stormwater management systems must be designed so that post-development peak discharges rates do not exceed pre-development peak discharge rates.
 - (c) Loss of annual recharge to groundwater should be minimized through the use of infiltration measures to the maximum extent practicable. The annual recharge from the post-development site should approximate the annual

recharge rate from the pre-development or existing site conditions, based on soil types.

- (d) For new development, stormwater management systems must be designed to remove 80% of the average annual load (post-development conditions) of total suspended solids (TSS). It is presumed that this standard is met when:
 - [1] Suitable nonstructural practices for source control and pollution prevention are implemented;
 - [2] Stormwater management best management practices (BMPs) are sized to capture the prescribed runoff volume; and
 - [3] Stormwater management BMPs are maintained as designed.
- (e) Stormwater discharges from areas with higher potential pollutant loads require the use of specific stormwater management BMPs. The use of infiltration practices without pretreatment is prohibited.
- (f) Stormwater discharges to critical areas must utilize certain stormwater management BMPs approved for critical areas (see MA DEP's Stormwater Management Volume I: Stormwater Policy Handbook). Critical areas are outstanding resource waters (ORWs), cold-water fisheries, and recharge areas for public water supplies.
- (g) Redevelopment of previously developed sites must meet the stormwater management standards to the maximum extent practicable. However, if it is not practicable to meet all the standards, new (retrofitted or expanded) stormwater management systems must be designed to improve existing conditions.
- (h) Erosion and sediment controls must be implemented to prevent impacts during disturbance and construction activities.
- (i) All stormwater management systems must have an operation and maintenance plan to ensure that systems function as designed.
- (j) When one or more of the standards cannot be met, an applicant may demonstrate that an equivalent level of environmental protection will be provided.
- (3) Project changes. The permittee, or its agent, shall notify the SPGA in writing of any change or alteration of a land-disturbing activity authorized in a stormwater management permit before any change or alteration occurs. If the SPGA determines that the change or alteration is significant, based on the design standards listed in Subsection E(2) and accepted construction practices, the SPGA may require that an amended stormwater management permit application be filed and a public hearing held. If any change or deviation from the stormwater management permit occurs during a project, the SPGA may require the installation of interim measures before approving the change.
- F. Operation and maintenance plans. An operation and maintenance plan (O&M plan) is required at the time of application for all projects. The maintenance plan shall be designed to ensure compliance with the permit, this bylaw and that the Massachusetts Surface Water Quality Standards, 314 CMR 4.00 are met in all seasons and throughout the life of the system. The operation and maintenance plan shall remain on file with the SPGA and shall be an ongoing requirement. The O&M plan shall include:
 - (1) The name(s) of the owner(s) for all components of the system.
 - (2) Maintenance agreements that specify:
 - (a) The names and addresses of the person(s) responsible for operation and maintenance.
 - (b) The person(s) responsible for financing maintenance and emergency repairs.
 - (3) Maintenance schedule for all drainage structures, including swales and ponds.
 - (4) List of easements, with the purpose and location of each.

- (5) The signature(s) of the owner(s).
- (6) Stormwater management easement(s).
 - (a) Stormwater management easements shall be provided by the property owner(s) as necessary for:
 - [1] Access for facility inspections and maintenance.
 - [2] Preservation of stormwater runoff conveyance, infiltration, and detention areas and facilities, including flood routes for the one-hundred-year storm event.
 - [3] Direct maintenance access by heavy equipment to structures requiring regular cleanout.
 - (b) The purpose of each easement shall be specified in the maintenance agreement signed by the property owner.
 - (c) Stormwater management easements are required for all areas used for off-site stormwater control, unless a waiver is granted by the SPGA.
 - (d) Easements shall be recorded with the Worcester County Registry of Deeds prior to issuance of a certificate of completion by the SPGA.
- (7) Changes to operation and maintenance plans.
 - (a) The owner(s) of the stormwater management system must notify the SPGA of changes in ownership or assignment of financial responsibility.
 - (b) The maintenance schedule in the maintenance agreement may be amended to achieve the purposes of this bylaw by mutual agreement of the SPGA and the responsible parties. Amendments must be in writing and signed by all responsible parties. Responsible parties shall include the owner(s), persons with financial responsibility, and persons with operational responsibility.
- G. Surety. The SPGA may require the permittee to post, before the start of land disturbance or construction activity, a surety bond, cash, or other acceptable security. The form of the bond shall be approved by Town Counsel, and be in an amount deemed sufficient by the SPGA to ensure that the work will be completed in accordance with the permit. If the project is phased, the SPGA may release part of the bond as each phase is completed in compliance with the permit, but the bond may not be fully released until the SPGA has received the final inspection report as required by Subsection **H** and issued a certificate of completion.
- H. Inspections.
 - (1) At the discretion of the SPGA, periodic inspections of the stormwater management system construction may be conducted by the Town via the Planning Board, Conservation Commission, DPW or a professional engineer approved by the SPGA. Written reports shall include:
 - (a) Inspection date and location.
 - (b) Evaluation of compliance with the stormwater permit.
 - (c) Any variations from approved specifications or any violations of the stormwater management plan.
 - (2) At a minimum, the SPGA or its designee may inspect the project site at the following stages:
 - (a) Initial site inspection: prior to approval of any plan.
 - (b) Erosion control inspection: to ensure erosion control practices are in accord with the filed plan.

- (c) Bury inspection: prior to backfilling of any underground drainage stormwater conveyance structures.
- (d) Final inspection. After the stormwater management system has been constructed and before the surety has been released, the applicant must submit a record plan detailing the actual stormwater management system as installed. The SPGA or its agent may inspect the system to confirm its "as-built" features. This inspector may also evaluate the effectiveness of the system in an actual storm. If the inspector finds the system to be adequate he shall so report to the SPGA, which will issue a certificate of completion. As-built plans shall be full-size plans that include all final grades, prepared by a professional engineer. All changes to project design should be clearly depicted on the as-built plans.
- (e) If the system is found to be inadequate by virtue of physical evidence of operational failure, even though it was built as called for in the stormwater management plan, it shall be corrected by the permittee before the performance guarantee is released. If the permittee fails to act, the Town of Lunenburg may use the surety bond to complete the work. If the system does not comply with the plan, the permittee shall be notified in writing of the violation and the required corrective actions. A stop-work order shall be issued until any violations are corrected and all work previously completed has received approval by the SPGA.

I. Waivers.

- (1) The SPGA may waive strict compliance with any requirement of this bylaw or the rules and regulations promulgated hereunder, where such action:
 - (a) Is allowed by federal, state and local statutes and/or regulations;
 - (b) Is in the public interest; and
 - (c) Is not inconsistent with the purpose and intent of this bylaw.
- (2) Any applicant may submit a written request to be granted such a waiver. Such a request shall be accompanied by an explanation or documentation supporting the waiver request and demonstrating that strict application of the bylaws does not further the purposes or objectives of this bylaw.
- (3) All waiver requests shall be discussed and voted on at the public hearing for the project.
- (4) If, in the SPGA's opinion, additional time or information is required for review of a waiver request, the SPGA may continue the hearing to a date certain announced at the meeting. In the event the applicant objects to a continuance, or fails to provide requested information, the waiver request shall be denied.

J. Certificate of completion. The SPGA will issue a letter certifying completion upon receipt and approval of the final inspection reports and/or upon otherwise determining that all work of the permit has been satisfactorily completed in conformance with this bylaw.

K. Enforcement.

- (1) Enforcement agents. The Building Commissioner, in conjunction with the Planning Board, Conservation Commission and DPW Director, shall enforce this bylaw, regulations, orders, violation notices, and enforcement orders, and may pursue all civil and criminal remedies for such violations.

L. Civil relief. If a person violates the provisions of this bylaw, regulations, a permit, notice, or order issued thereunder, the Planning Board, through the Building Commissioner, may seek injunctive relief in a court of competent jurisdiction restraining the person from activities which would create further violations or compelling the person to perform abatement or remediation of the violation.

M. Orders.

- (1) The Planning Board, in conjunction with the Conservation Commission and DPW Director, may issue a written order to the Building Commissioner to enforce the provisions of this bylaw or the regulations thereunder, which may include:
 - (a) Elimination of illicit connections or discharges to the MS4;
 - (b) Performance of monitoring, analyses, and reporting;
 - (c) That unlawful discharges, practices, or operations shall cease and desist;
 - (d) Remediation of contamination in connection therewith.
 - (2) If the Building Commissioner, in conjunction with the Planning Board, Conservation Commission and DPW Director, determines that abatement or remediation of contamination is required, the order shall set forth a deadline by which such abatement or remediation must be completed. Said order shall further advise that, should the violator or property owner fail to abate or perform remediation within the specified deadline, the Town may, at its option, undertake such work, and expenses thereof shall be charged to the violator.
 - (3) Within 30 days after completing all measures necessary to abate the violation or to perform remediation, the violator and the property owner will be notified of the cost incurred by the Town, including administrative costs. The violator or property owner may file a written protest objecting to the amount or basis of costs with the Planning Board within 30 days of receipt of the notification of the cost incurred. If the amount due is not received by the expiration of the time in which to file a protest or within 30 days following a decision of the Planning Board affirming or reducing the costs, or from a final decision of a court of competent jurisdiction, the costs shall become a special assessment against the property owner and shall constitute a lien on the owner's property for the amount of said costs. Interest shall begin to accrue on any unpaid costs at the statutory rate provided in MGL c. 59, § 57 after the 31st day at which the costs first become due.
- N. Noncriminal disposition; right of entry.
- (1) As an alternative to criminal prosecution or civil action, the Planning Board may elect, through the Building Commissioner, to utilize the noncriminal disposition procedure set forth in MGL c. 40, § 21D, and Chapter 1, Article I, of the General Bylaws of the Town, in which case the Planning Board, its authorized agents and the Building Commissioner of the Town shall be the enforcing person. The penalty for the first violation shall be \$25. The penalty for the second violation shall be \$50. The penalty for the third violation shall be \$100 and \$200 for the fourth and each subsequent violation. Each day or part thereof that such violation occurs or continues shall constitute a separate offense.
 - (2) Entry to perform duties under this bylaw. To the extent permitted by state law, or if authorized by the owner or other party in control of the property, the Planning Board, its agents, and employees may enter upon privately owned property for the purpose of performing their duties under this bylaw and regulations and may make or cause to be made such examination surveys or sampling as the Planning Board deems reasonably necessary.
- O. Appeals. The decisions or orders of the Planning Board, in conjunction with the Conservation Commission and DPW, shall be final. Further relief shall be to a court of competent jurisdiction.
- P. Remedies not exclusive. The remedies listed in this bylaw are not exclusive of any other remedies available under any applicable federal, state or local law.
- Q. Severability. The invalidity of any section, provision, paragraph, sentence, or clause of these regulations shall not invalidate any section, provision, paragraph, sentence, or clause thereof, nor shall it invalidate any permit or determination that previously has been issued.

204-2 Discharges to municipal storm sewer system and waters of commonwealth; NPDES Phase II permits.

A. Purpose.

- (1) Increased and contaminated stormwater runoff is a major cause of impairment of water quality and flow in lakes, ponds, streams, rivers, wetlands and groundwater; contamination of drinking water supplies; alteration or destruction of aquatic and wildlife habitat; flooding.
- (2) Regulation of illicit connections and discharges to the municipal storm sewer system is necessary for the protection of the Town's water bodies and groundwater, and to safeguard the public health, safety, welfare and the environment.
- (3) The objectives of this bylaw are:
 - (a) To prevent pollutants from entering the Town's municipal separate storm sewer system (MS4);
 - (b) To prohibit illicit connections and unauthorized discharges to the MS4;
 - (c) To require the removal of all such illicit connections;
 - (d) To comply with state and federal statutes and regulations relating to stormwater discharges; and
 - (e) To establish the legal authority to ensure compliance with the provisions of this bylaw through inspection, monitoring, and enforcement.

B. Definitions. For the purposes of this bylaw, the following shall mean:

AUTHORIZED ENFORCEMENT AGENCY

The Planning Board (hereafter the "Board"), its employees or agents designated to administer/enforce this bylaw.

BEST MANAGEMENT PRACTICE (BMP)

An activity, procedure, restraint, or structural improvement that helps to reduce the quantity or improve the quality of stormwater runoff.

CLEAN WATER ACT

The Federal Water Pollution Control Act (33 U.S.C. § 1251 et seq.) as hereafter amended.

DISCHARGE OF POLLUTANTS

The addition from any source of any pollutant or combination of pollutants into the municipal storm sewer system or into the waters of the United States or commonwealth from any source.

GROUNDWATER

Water beneath the surface of the ground.

ILLICIT CONNECTION

A surface or subsurface sewer or conveyance, which allows an illicit discharge into the municipal storm sewer system, including without limitation sewage, process wastewater, or wash water and any connections from indoor drains, sinks, or toilets, regardless of whether said connection was previously allowed, permitted, or approved before the effective date of this bylaw.

ILLICIT DISCHARGE

Direct or indirect discharge to the municipal storm sewer system that is not composed entirely of stormwater, except as exempted in Subsection **H**. The term does not include a discharge in compliance with an NPDES stormwater discharge permit or a surface water discharge permit, or resulting from fire-fighting activities exempted pursuant to

Subsection **H** of this bylaw.

IMPERVIOUS SURFACE

Any material or structure on or above the ground that prevents water infiltrating the underlying soil. Impervious surface includes without limitation roads, paved parking lots, sidewalks, and rooftops.

MUNICIPAL SEPARATE STORM DRAIN SYSTEM (MS4) or MUNICIPAL STORM SEWER SYSTEM

The system of conveyances designed or used for collecting or conveying stormwater, including any road with a drainage system, street, gutter, curb, inlet, piped storm drain, pumping facility, retention or detention basin, natural or man-made or altered drainage channel, reservoir, and other drainage structure that together comprise the storm drainage system owned or operated by the Town of Lunenburg.

NATIONAL POLLUTANT DISCHARGE ELIMINATION SYSTEM (NPDES) STORMWATER DISCHARGE PERMIT

A permit issued by United States Environmental Protection Agency or jointly with the state that authorizes the discharge of pollutants to waters of the United States.

NON-STORMWATER DISCHARGE

Discharge to the municipal storm sewer system not composed entirely of stormwater.

PERSON

An individual, partnership, association, firm, company, trust, corporation, agency, authority, department or political subdivision of the commonwealth or the federal government, to the extent permitted by law, and any officer, employee, or agent of such person.

POLLUTANT

Any element or property of sewage, agricultural, industrial or commercial waste, runoff, leachate, heated effluent, or other matter, whether originating at a point or nonpoint source, that is or may be introduced into any sewage treatment works or waters of the commonwealth. Pollutants may include but are not limited to:

- (1) Paints, varnishes, and solvents;
- (2) Oil and other automotive fluids;
- (3) Nonhazardous liquid and solid wastes and yard wastes;
- (4) Refuse, rubbish, garbage, litter, or other discarded or abandoned objects, ordnances, accumulations and floatables;
- (5) Pesticides, herbicides, and fertilizers;
- (6) Hazardous materials and wastes; sewage, fecal coliform and pathogens;
- (7) Dissolved and particulate metals;
- (8) Animal wastes;
- (9) Rock, sand, salt, soils;
- (10) Construction wastes and residues;
- (11) Noxious or offensive matter of any kind.

PROCESS WASTEWATER

Water which during manufacturing or processing comes into direct contact with or results from the production or use

of any material, intermediate product, finished product, or waste product.

RECHARGE

The process by which groundwater is replenished by precipitation through the percolation of runoff and surface water through the soil.

STORMWATER

Stormwater runoff, snow melt runoff, and surface water runoff and drainage.

SURFACE WATER DISCHARGE PERMIT

A permit issued by the Department of Environmental Protection (DEP) pursuant to 314 CMR 3.00 that authorizes the discharge of pollutants to waters of the Commonwealth of Massachusetts.

TOXIC OR HAZARDOUS MATERIAL OR WASTE

Any material which, because of its quantity, concentration, chemical, corrosive, flammable, reactive, toxic, infectious or radioactive characteristics, either separately or in combination with any substance or substances, constitutes a present or potential threat to human health, safety, welfare, or to the environment. Toxic or hazardous materials include any synthetic organic chemical, petroleum product, heavy metal, radioactive or infectious waste, acid and alkali, and any substance defined as toxic or hazardous under MGL c. 21C and c. 21E, and the regulations at 310 CMR 30.000 and 310 CMR 40.0000.

WASTEWATER

Any sanitary waste, sludge, or septic tank or cesspool overflow, and water that during manufacturing, cleaning or processing, comes into direct contact with or results from the production or use of any raw material, intermediate product, finished product, byproduct or waste product.

WATERCOURSE

A natural or man-made channel through which water flows or a stream of water, including a river, brook or underground stream.

WATERS OF THE COMMONWEALTH

All waters within the jurisdiction of the commonwealth, including, without limitation, rivers, streams, lakes, ponds, springs, impoundments, estuaries, wetlands, and groundwater.

- C. Applicability. This bylaw shall apply to flows entering the municipally owned storm sewerage system and waters of the commonwealth.
- D. Authority. This bylaw is adopted pursuant to the regulations of the Federal Clean Water Act found at 40 CFR 122.34 and the Phase II ruling from the Environmental Protection Agency found in the December 8, 1999 Federal Register.
- E. Responsibility for administration. The Planning Board, in conjunction with the Conservation Commission, Department of Public Works Director and Building Commissioner, shall administer, implement and enforce this bylaw. Any powers granted to or duties imposed upon the above may be delegated in writing by the above to employees or agents of the above.
- F. Regulations. The Planning Board may promulgate rules and regulations to effectuate the purposes of this bylaw. Failure by the Planning Board to promulgate such rules and regulations shall not have the effect of suspending or invalidating this bylaw.
- G. Prohibited activities.
- (1) Illicit discharges. No person shall dump, discharge, cause or allow to be discharged any pollutant or non-stormwater discharge into the municipal separate storm sewer system (MS4), into a watercourse, or into the waters of the commonwealth.

- (2) Illicit connections. No person shall construct, use, allow, maintain or continue any illicit connection to the municipal storm sewer system, regardless of whether the connection was permissible under applicable law, regulation or custom at the time of connection.
- (3) Obstruction of municipal storm sewer system. No person shall obstruct or interfere with the normal flow of stormwater into or out of the municipal storm sewer system without prior written approval from the Planning Board.

H. Exemptions:

- (1) Discharge or flow resulting from fire-fighting activities.
- (2) The following non-stormwater discharges or flows are exempt from the prohibition of non-stormwaters, provided that the source is not a significant contributor of a pollutant to the municipal storm sewer system:
 - (a) Water line flushing;
 - (b) Flow from potable water sources;
 - (c) Springs;
 - (d) Natural flow from riparian habitats and wetlands;
 - (e) Diverted stream flow;
 - (f) Rising groundwater;
 - (g) Uncontaminated groundwater infiltration as defined in 40 CFR 35.2005(20), or uncontaminated pumped groundwater;
 - (h) Water from exterior foundation drains, footing drains (not including active groundwater dewatering systems), crawl space pumps, or air conditioning condensation;
 - (i) Discharge from landscape irrigation or lawn watering;
 - (j) Water from individual residential car washing;
 - (k) Discharge from dechlorinated swimming pool water (less than one ppm chlorine), provided the water is allowed to stand for one week prior to draining and the pool is drained in such a way as not to cause a nuisance;
 - (l) Discharge from street sweeping;
 - (m) Dye testing, provided verbal notification is given to the Planning Board prior to the time of the test;
 - (n) Non-stormwater discharge permitted under an NPDES permit or a surface water discharge permit, waiver, or waste discharge order administered under the authority of the United States Environmental Protection Agency or the Department of Environmental Protection, provided that the discharge is in full compliance with the requirements of the permit, waiver, or order and applicable laws and regulations;
 - (o) Discharge for which advanced written approval is received from the Planning Board as necessary to protect public health, safety, welfare or the environment.
- (3) Discharge or flow that results from exigent conditions and occurs during a state of emergency declared by any agency of the federal or state government, or by the Town of Lunenburg Town Manager, the Planning Board or the Board of Health.

- I. Emergency suspension of storm sewerage system access. The Planning Board may suspend municipal storm sewer system access to any person or property without prior written notice when such suspension is necessary to stop an actual or threatened discharge of pollutants that presents imminent risk of harm to the public health, safety, welfare or the environment. In the event any person fails to comply with an emergency suspension order, the authorized enforcement agency may take all reasonable steps to prevent or minimize harm to the public health, safety, welfare or the environment.
- J. Notification of spills. Notwithstanding other requirements of local, state or federal law, as soon as a person responsible for a facility or operation, or responsible for emergency response for a facility or operation has information of or suspects a release of materials at that facility or operation resulting in or which may result in discharge of pollutants to the municipal drainage system or waters of the commonwealth, the person shall take all necessary steps to ensure containment and cleanup of the release. In the event of a release of oil or hazardous materials, the person shall immediately notify the municipal fire and police departments and the Planning Board and the Lunenburg Board of Health. In the event of a release of nonhazardous material, the reporting person shall notify the Planning Board no later than the next business day. The reporting person shall provide to the Planning Board written confirmation of all telephone, facsimile or in-person notifications within three business days thereafter. If the discharge of prohibited materials is from a commercial or industrial facility, the facility owner or operator of the facility shall retain on-site a written record of the discharge and the actions taken to prevent its recurrence. Such records shall be retained for at least three years.
- K. Enforcement.
 - (1) The Building Commissioner, in conjunction with the Planning Board, Conservation Commission and DPW Director, shall enforce this bylaw, regulations, orders, violation notices, and enforcement orders, and may pursue all civil and criminal remedies for such violations.
 - (2) Civil relief. If a person violates the provisions of this bylaw, regulations, permit, notice, or order issued thereunder, the Planning Board, through the Building Commissioner, may seek injunctive relief in a court of competent jurisdiction restraining the person from activities which would create further violations or compelling the person to perform abatement or remediation of the violation.
 - (3) Orders.
 - (a) The Planning Board, in conjunction with the Conservation Commission and DPW Director, may issue a written order to the Building Commissioner to enforce the provisions of this bylaw or the regulations thereunder, which may include:
 - [1] Elimination of illicit connections or discharges to the MS4;
 - [2] Performance of monitoring, analyses, and reporting;
 - [3] That unlawful discharges, practices, or operations shall cease and desist; and
 - [4] Remediation of contamination in connection therewith.
 - (b) If the Building Commissioner, in conjunction with Planning Board, Conservation Commission and DPW Director, determines that abatement or remediation of contamination is required, the order shall set forth a deadline by which such abatement or remediation must be completed. Said order shall further advise that, should the violator or property owner fail to abate or perform remediation within the specified deadline, the Town may, at its option, undertake such work, and expenses thereof shall be charged to the violator.
 - (4) Costs. Within 30 days after completing all measures necessary to abate the violation or to perform remediation, the violator and the property owner will be notified of the costs incurred by the Town, including administrative costs. The violator or property owner may file a written protest objecting to the amount or basis of costs with the Planning Board within 30 days of receipt of the notification of the costs incurred. If the amount due is not received by the

expiration of the time in which to file a protest or within 30 days following a decision of the Planning Board affirming or reducing the costs, or from a final decision of a court of competent jurisdiction, the costs shall become a special assessment against the property owner and shall constitute a lien on the owner's property for the amount of said costs. Interest shall begin to accrue on any unpaid costs at the statutory rate provided in MGL c. 59, § 57 after the 31st day at which the costs first become due.

- (5) Noncriminal disposition. As an alternative to criminal prosecution or civil action, the Planning Board may elect, through the Building Commissioner, to utilize the noncriminal disposition procedure set forth in MGL c. 40, § 21D, in which case the Building Commissioner of the Town shall be the enforcing person. The penalty for the first violation shall be \$25. The penalty for the second violation shall be \$50. The penalty for the third violation shall be \$100. The penalty for the fourth violation and subsequent violations shall be \$200. Each day or part thereof that such violation occurs or continues shall constitute a separate offense.
- (6) Entry to perform duties. Under this bylaw, to the extent permitted by state law, or if authorized by the owner or other party in control of the property, the Planning Board, its agents, and employees may enter upon privately owned property for the purpose of performing their duties under this bylaw and regulations and may make or cause to be made such examinations, surveys or sampling as the Planning Board deems reasonably necessary.
- (7) Appeals. The decisions or orders of the Planning Board, Conservation Commission and DPW shall be final. Further relief shall be to a court of competent jurisdiction.
- (8) Remedies not exclusive. The remedies listed in this bylaw are not exclusive of any other remedies available under any applicable federal, state or local law.
- L. Severability. The provisions of this bylaw are hereby declared to be severable. If any provision, paragraph, sentence, or clause of this bylaw or the application thereof to any person, establishment, or circumstances shall be held invalid, such invalidity shall not affect the other provisions or application of this bylaw.
- M. Transitional provisions. Residential property owners shall have 180 days from the effective date of the bylaw to comply with its provisions or petition the Planning Board for an extension, provided good cause is shown for the failure to comply with the bylaw during the specified period. All other property owners shall have 180 days from the effective date of the bylaw to comply with its provisions or petition the Planning Board for an extension, provided good cause is shown for the failure to comply with the bylaw during the specified period.

And you are directed to serve this Warrant by posting attested copies thereof in four or more public places in the Town, fourteen (14) days at least before the day appointed for said meeting, one of which places shall be the Town Hall, one at Whalom Variety Store in the Whalom-Bakerville District, one at Powell's and one at Jaxx Country Variety, and by mailing a copy to each dwelling unit in the Town in which a registered voter resides at least fourteen (14) days prior to such meeting. Hereof, fail not and make due return of this Warrant, with your doings thereon, to the Town Clerk at the time and place aforesaid.

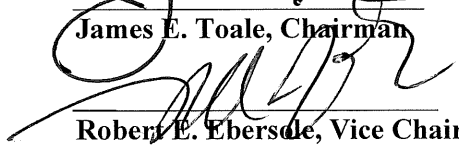
Given under our hands this 25th day of October in the year Two Thousand and Seventeen

A true copy attest:

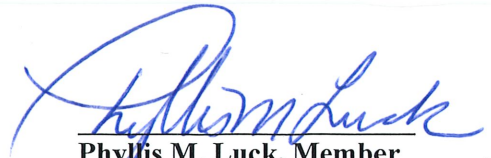
Kathryn M. Herrick, Town Clerk

LUNENBURG BOARD OF SELECTMEN

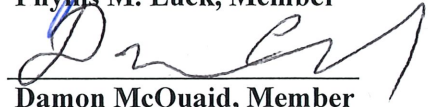

James E. Toale, Chairman


Robert E. Ebersole, Vice Chairman

Paula J. Bertram, Clerk



Phyllis M. Luck, Member



Damon McQuaid, Member

